

1863-001

Chancery Causes: Meredith Hurt & wife vs. Wilmington F. Cole &

Lee Co.

1 Plat

CA-Estate Dispute
T-Property

to this bill - That a guardian
ad litem be appointed for the said
defendants who will answer this
bill truly upon oath. That said
Commissioners be appointed directed
to lay off the complainant's claim
inasmuch of said road on the side
of the tract adjoining the land
on which Stephen S. Blackwell
now resides in said county on
the Lone Creek road as this
will insure the evidence of
said tract clear and said
~~Commissioners~~ report further
and general utility.

Hagen & Richardson

Mr. Hunt & wife

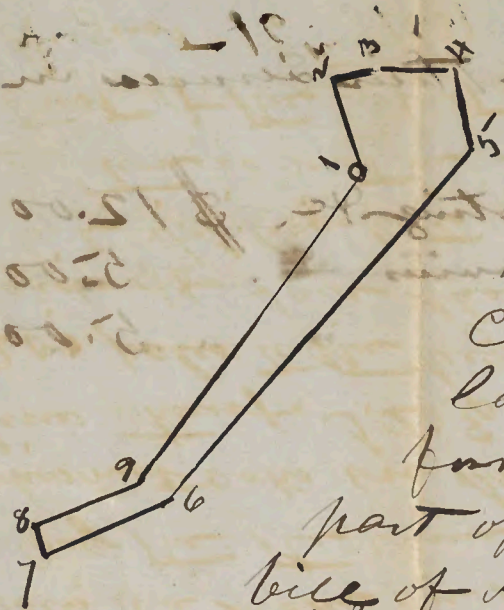
no } Answer of
Exhortation ad litem

Mr. F. Cole & wife

Maria M. C. Hurt & Son vs wife vs
Wilmington & Cole & Son - In. C. J.

Upon the motion of the plaintiffs in this
cause it is ordered to be placed on the issue
docket and on motion it is further ordered
that David Miller be appointed a guardian
ad litem of the infant defendants and
the said Miller having filed an answer
for the defendants. Thereupon the cause
came on this day to be heard upon
the plaintiffs bill the exhibit filed &
the answer of the defendants by
David Miller their guardian ad
litem and was argued by counsel

Upon consideration whereof it is
ordered adjudged and decreed that Aaron
Bailey, S. S. Crickett & John J. Myers be
and they are hereby appointed Commis-
sioners for the purpose and they are
directed to partition and lay off to the
plaintiffs Helen M. Hurt formerly Helen
M. Cole the one-fifth of the land
in the bill referred and it is ordered
that the interest of the said Helen
be laid off of that part of said
land which lies adjoining the land on
which S. S. Crickett now resides
provided that this mode of partition
will not in the opinion of said Comm-
issioners prejudice the interest of the infant
defendants. But if so prejudicial then the
said commissioners are directed to lay off & allot



By a decree of the County Court of the County reached the 14 day of June last, the undersigned were appointed Commissioners for the purpose of laying off to Helen M. Hunt formerly Helen M. Cole, one fifth part of the land mentioned in the bill of Merideth C. Hunt & wife Plffs. vs. Wilmington J. Cole & others Defendants. The undersigned beg leave to report. They ascertained the quantity in the whole tract to be 253 acres, and they have laid off and assigned to the d. Helen M. Hunt as her interest of one fifth part of said tract, 50 acres of the same, which is bounded as follows Beginning at a chestnut Oak & a white oak on a Spruce; thence N. 71 E. 50 poles to a buckeye ash & hornbeam by a branch; thence S. 12 E. 24 poles to a chestnut & 2 gums; thence South 38 poles to a poplar corner to Garrett's land & with a line thereof S. 79 W. 46 poles to a tripple chestnut, a chestnut sprout & a small black oak by an old road on the top of the chestnut ridge; thence N. 49 W. 240 poles to a stake in a field; thence N. 20 W. 72 poles to a stake on the top of the poor valley ridge & along the the same N. 73 E. 17 poles to a rock & 3 chestnut oaks on Stephen S. Crackett's line & with lines thereof S. 20 E. 62 poles to a poplar; thence S. 53 E. 200 poles to the beginning. The undersigned have laid off said share adjoining the tract of land on which S. S. Crackett now resides, and such mode of partition is not in their opinion prejudicial to the interest of the infant defendants. Respectfully Submitted
 Carr Bailey
 Stephen S. Crackett
 John J. Myers }

August 16th. 1861